NHRC AND SHRC

STATUTORY ORIGIN AND THE → NHRC COMPOSITION AND DEEMED-MEMBER → NHRC APPOINTMENT, TENURE AND → SHRC DESIGN AND THE → SECTION 12 FUNCTIONS AND → INVESTIGATION SUPPORT AND PROCEDURAL

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g8 and all prior artifacts unchanged

00 STATUTORY ORIGIN AND THE SECTION 2 HUMAN-RIGHTS FIELD

STAGE 00

STATUTORY ORIGIN AND THE SECTION 2 HUMAN-RIGHTS FIELD · PROTECTION OF HUMAN RIGHTS ACT, 1993 DEEMED COMMENCEMENT 28 · PRESIDENTIAL ASSENT 8 JANUARY 1994 · AMENDMENTS IN 2006 AND 2019 RESHAPE DESIGN; COMMISSIONS REMAIN · SECTION 2(D) RIGHTS RELATING TO LIFE, LIBERTY, EQUALITY AND · GUARANTEED BY CONSTITUTION OR EMBODIED IN DEFINED INTERNATIONAL COVENANTS · ENFORCEABLE BY COURTS IN INDIA. · SECTION 2(F)

CONSTITUTIONAL BASIS / ARTICLE

- PROTECTION OF HUMAN RIGHTS ACT, 1993 deemed commencement 28 September 1993
- presidential assent 8 January 1994.
- Amendments in 2006 and 2019 reshape design; commissions remain statutory.
- SECTION 2(d) rights relating to life, liberty, equality and dignity

POWER / PROCEDURE

- guaranteed by Constitution or embodied in defined International Covenants
- enforceable by courts in India.
- SECTION 2(f)
- ICCPR + ICESCR + notified UN General Assembly covenant or convention.

CHECK / LIMIT

- INSTITUTIONAL MAP
- NHRC at Union level
- SHRCs at State level
- Human Rights Courts as trial route.

FEDERAL / RIGHTS IMPACT

- LIMIT human-rights importance does not convert NHRC or SHRC into a constitutional court.
- MUST REMEMBER: Use the Protection of Human Rights Act, 1993 as amended in 2019; keep NHRC and
- SHRC statutory rather than constitutional.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Use the Protection of Human Rights Act, 1993 as amended in 2019; keep NHRC and.

01 NHRC COMPOSITION AND DEEMED-MEMBER BOUNDARY

STAGE 01

NHRC COMPOSITION AND DEEMED-MEMBER BOUNDARY · CHAIRPERSON + FIVE ORDINARY MEMBERS UNDER SECTION 3(2). · PERSON WHO HAS BEEN CJI OR SUPREME COURT JUDGE. · JUDICIAL ROUTES · SUPREME COURT JUDGE + HIGH COURT CHIEF JUSTICE. · THREE EXPERTS, AT LEAST ONE WOMAN. · SEVEN DEEMED MEMBERS · CHIEF COMMISSIONER PWD.

NHRC: Chairperson + five ordinary members under section 3(2). → Chair: person who has been CJI or Supreme Court Judge. → Judicial routes: Supreme Court Judge + High Court Chief Justice. → Three experts, at least one woman. → SEVEN DEEMED MEMBERS

CONSTITUTIONAL BASIS / ARTICLE

- NHRC: Chairperson + five ordinary members under section 3(2).
- Chair: person who has been CJI or Supreme Court Judge.
- Judicial routes: Supreme Court Judge + High Court Chief Justice.
- Three experts; at least one woman.

POWER / PROCEDURE

- SEVEN DEEMED MEMBERS
- Chief Commissioner PwD.
- They participate for section 12(b)–(j), not section 12(a) complaint inquiry.
- 'deemed member' is not a merger of specialised commissions.

CHECK / LIMIT

- CURRENT PUBLIC ROSTER: 5 SEPTEMBER 2026
- Chair: Justice V. Ramasubramanian.
- Members: Justice (Dr) Bidyut Ranjan Sarangi
- Vijaya Bharathi Sayani

FEDERAL / RIGHTS IMPACT

- Priyank Kanoongo. Do not infer occupants for undisplayed statutory seats.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Priyank Kanoongo. Do not infer occupants for undisplayed statutory seats.

02 NHRC APPOINTMENT, TENURE AND REMOVAL

STAGE 02

NHRC APPOINTMENT, TENURE AND REMOVAL · SIX-MEMBER COMMITTEE RECOMMENDS · PRESIDENT APPOINTS BY WARRANT. · SITTING JUDICIAL APPOINTEE REQUIRES CONSULTATION WITH CJI. · TENURE THREE YEARS; AGE CEILING 70; REAPPOINTMENT PERMITTED; POST-OFFICE · REMOVAL PROVED MISBEHAVIOUR/INCAPACITY · PRESIDENT REFERENCE · SUPREME COURT INQUIRY/REPORT

Six-member committee recommends → President appoints by warrant.

Sitting judicial appointee requires consultation with CJI. → TENURE three years; age ceiling 70; reappointment permitted; post-office government employment barred. → REMOVAL proved misbehaviour/incapacity: President reference → Supreme Court inquiry/report → removal.

CONSTITUTIONAL BASIS / ARTICLE

- Six-member committee recommends → President appoints by warrant.
- Sitting judicial appointee requires consultation with CJI.

POWER / PROCEDURE

- TENURE three years; age ceiling 70; reappointment permitted; post-office government employment barred.
- REMOVAL proved misbehaviour/incapacity: President reference → Supreme Court inquiry/report → removal.

CHECK / LIMIT

- Separate direct statutory grounds remain distinct.
- LIMIT committee vacancy does not by itself invalidate appointment, but judicial review remains.

FEDERAL / RIGHTS IMPACT

- Six-member committee recommends → President appoints by warrant.
- Sitting judicial appointee requires consultation with CJI.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT committee vacancy does not by itself invalidate appointment, but judicial review remains.

03 SHRC DESIGN AND THE FEDERAL JURISDICTION LINE

STAGE 03

SHRC DESIGN AND THE FEDERAL JURISDICTION LINE · SHRC MAY BE CONSTITUTED BY STATE GOVERNMENT. · PERSON WHO HAS BEEN HIGH COURT CHIEF JUSTICE OR · ONE JUDICIAL MEMBER + ONE HUMAN-RIGHTS EXPERT. · GOVERNOR APPOINTS AFTER STATE COMMITTEE RECOMMENDATION; PRESIDENT REMOVES UNDER · STATE LIST + CONCURRENT LIST MATTERS. · NO DUPLICATE INQUIRY WHERE NHRC OR ANOTHER COMMISSION IS · SECTION 29 ADAPTS SECTION 12 AND OMITS TREATY-STUDY CLAUSE

CONSTITUTIONAL BASIS / ARTICLE

- SHRC MAY be constituted by State Government.
- Chair: person who has been High Court Chief Justice or Judge.

POWER / PROCEDURE

- One judicial member + one human-rights expert.
- Governor appoints after State committee recommendation; President removes under the Act.

CHECK / LIMIT

- State List + Concurrent List matters.
- No duplicate inquiry where NHRC or another commission is seized.

FEDERAL / RIGHTS IMPACT

- Section 29 adapts section 12 and omits treaty-study clause 12(f).
- TRAP appointment by Governor does not mean removal by Governor.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP appointment by Governor does not mean removal by Governor.

04 SECTION 12 FUNCTIONS AND SECTION 13 EVIDENCE POWERS

STAGE 04

SECTION 12 FUNCTIONS AND SECTION 13 EVIDENCE POWERS · SECTION 12 FUNCTIONS SUO MOTU OR PETITION INQUIRY · COURT INTERVENTION WITH APPROVAL INSTITUTION VISITS · REVIEW CONSTITUTIONAL/LEGAL SAFEGUARDS REVIEW FACTORS INHIBITING RIGHTS · STUDY TREATIES RESEARCH · NGO ENCOURAGEMENT · OTHER NECESSARY FUNCTIONS. · SECTION 13 INQUIRY POWERS SUMMON AND EXAMINE ON OATH

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 12 FUNCTIONS suo motu or petition inquiry
- court intervention with approval institution visits
- review constitutional/legal safeguards review factors inhibiting rights
- study treaties research

POWER / PROCEDURE

- NGO encouragement
- other necessary functions.
- SECTION 13 INQUIRY POWERS summon and examine on oath
- affidavits public records

CHECK / LIMIT

- specified additional powers.
- SECTION 14 INVESTIGATION
- Commission may use Central or State government agency or officers with consent.
- PROCEDURAL FAIRNESS notice and hearing where reputation or conduct may be prejudicially affected.

FEDERAL / RIGHTS IMPACT

- LIMIT civil-court evidence powers support inquiry
- they do not create ordinary civil or criminal jurisdiction.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: they do not create ordinary civil or criminal jurisdiction.

05 INVESTIGATION SUPPORT AND PROCEDURAL FAIRNESS

STAGE 05

INVESTIGATION SUPPORT AND PROCEDURAL FAIRNESS · SECTIONS 11 AND 14 · CENTRAL GOVERNMENT MAKES SPECIFIED STAFF AVAILABLE TO NHRC. · COMMISSION MAY USE CENTRAL/STATE AGENCY OR OFFICERS WITH GOVERNMENT · AGENCY WORKS UNDER COMMISSION DIRECTION FOR THE ASSIGNED INVESTIGATION · SECTION 16 · GIVE A REASONABLE OPPORTUNITY OF HEARING WHERE CONDUCT OR · LIMIT GOVERNMENT-LINKED STAFF CAN SUPPORT CAPACITY, BUT DOES NOT

SECTIONS 11 AND 14 → Central Government makes specified staff available to NHRC. → Commission may use Central/State agency or officers with government consent. → Agency works under Commission direction for the assigned investigation and reports back. → SECTION 16

CONSTITUTIONAL BASIS / ARTICLE

- SECTIONS 11 AND 14
- Central Government makes specified staff available to NHRC.
- Commission may use Central/State agency or officers with government consent.

POWER / PROCEDURE

- Agency works under Commission direction for the assigned investigation and reports back.
- SECTION 16
- Give a reasonable opportunity of hearing where conduct or reputation may be prejudicially affected.

CHECK / LIMIT

- LIMIT government-linked staff can support capacity, but does not equal an independent permanent investigation cadre.
- CLOSE DISTINCTION: Sections 12–14 inquiry powers and section 18 recommendations
- do not create criminal jurisdiction or self-executing compensation awards.

FEDERAL / RIGHTS IMPACT

- Agency works under Commission direction for the assigned investigation and reports back.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Sections 12–14 inquiry powers and section 18 recommendations do not create criminal jurisdiction or self-executing compensation awards.

06 INQUIRY OUTPUTS, REPORTING AND THE ONE-YEAR BAR

STAGE 06

INQUIRY OUTPUTS, REPORTING AND THE ONE-YEAR BAR · ENTRY COMPLAINT OR SUO MOTU MATERIAL · JURISDICTION SCREEN · INQUIRY OR INVESTIGATION. · SECTION 36 NO PARALLEL INQUIRY WHERE ANOTHER NAMED COMMISSION · SECTION 36(2) · NO INQUIRY AFTER ONE YEAR FROM THE ALLEGED VIOLATIVE · SECTION 18 OUTPUTS RECOMMEND COMPENSATION OR DAMAGES RECOMMEND PROSECUTION

ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.

SECTION 36 no parallel inquiry where another named commission is seized. → Section 36(2): no inquiry after one year from the alleged violative act. → SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

CONSTITUTIONAL BASIS / ARTICLE

- ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.
- SECTION 36 no parallel inquiry where another named commission is seized.
- Section 36(2): no inquiry after one year from the alleged violative act.

POWER / PROCEDURE

- SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other
- action approach Supreme Court or High Court recommend immediate interim relief.
- FOLLOW-UP government comments/action report ordinarily within one month

CHECK / LIMIT

- Commission publishes report, recommendation and response.
- LEGAL EFFECT recommendation carries public and institutional weight but is not a self-executing decree.
- TRAP action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

FEDERAL / RIGHTS IMPACT

- SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

07 SECTION 19 ARMED-FORCES PROCEDURE

STAGE 07

SECTION 19 ARMED-FORCES PROCEDURE · NHRC OWN MOTION/PETITION · SEEK CENTRAL GOVERNMENT REPORT · EITHER STOP OR RECOMMEND · CENTRAL GOVERNMENT REPORTS ACTION WITHIN THREE MONTHS · COMMISSION PUBLISHES REPORT, RECOMMENDATION AND RESPONSE. · ARMED FORCES · NAVAL, MILITARY, AIR AND OTHER ARMED FORCES OF UNION.

CONSTITUTIONAL BASIS / ARTICLE

- NHRC own motion/petition → seek Central Government report
- either stop or recommend → Central Government reports action within three months

POWER / PROCEDURE

- Commission publishes report, recommendation and response.
- Armed forces = naval, military, air and other armed forces of Union.

CHECK / LIMIT

- State police are not automatically within this definition.
- LIMIT section 19 replaces ordinary direct inquiry with a report-based route.

FEDERAL / RIGHTS IMPACT

- It does not create a rights-free zone.
- NHRC own motion/petition → seek Central Government report

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT section 19 replaces ordinary direct inquiry with a report-based route.

08 HUMAN RIGHTS COURTS AND PROSECUTION BRIDGE

STAGE 08

HUMAN RIGHTS COURTS AND PROSECUTION BRIDGE · SECTIONS 30-31 · STATE MAY, WITH HIGH COURT CHIEF JUSTICE CONCURRENCE, SPECIFY · SPEEDY TRIAL OF OFFENCES ARISING FROM HUMAN-RIGHTS VIOLATIONS. · SPECIAL PUBLIC PROSECUTOR · PUBLIC PROSECUTOR OR ADVOCATE WITH AT LEAST SEVEN YEARS' · COMMISSION INQUIRES/RECOMMENDS · POLICE INVESTIGATE OFFENCES

CONSTITUTIONAL BASIS / ARTICLE

- SECTIONS 30-31
- State MAY, with High Court Chief Justice concurrence, specify a Court of Session for each district.

POWER / PROCEDURE

- Purpose: speedy trial of offences arising from human-rights violations.
- Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice.

CHECK / LIMIT

- Commission inquiries/recommends → police investigate offences
- prosecutor presents case → Sessions Court adjudicates.

FEDERAL / RIGHTS IMPACT

- Notification is enabling; do not assume automatic nationwide operation.
- SECTIONS 30-31

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Notification is enabling; do not assume automatic nationwide operation.

09 OVERLAP, REFERRAL AND SPECIALISED COMMISSIONS

STAGE 09

OVERLAP, REFERRAL AND SPECIALISED COMMISSIONS · NHRC NATIONAL STATUTORY MANDATE SUBJECT TO PHRA EXCLUSIONS AND · SHRC INQUIRES INTO MATTERS RELATABLE TO STATE LIST AND · SECTION 29 ADAPTS FUNCTIONS AND OMITS TREATY STUDY. · NHRC MAY TRANSFER A COMPLAINT TO A COMPETENT SHRC · NCSC, NCST AND NCBC HAVE CONSTITUTIONAL SAFEGUARD MANDATES. · WOMEN, CHILD, MINORITY AND DISABILITY BODIES HAVE SPECIALISED STATUTORY · COORDINATION COMMON INTAKE METADATA

NHRC national statutory mandate subject to PHRA exclusions and transfer rules.

SHRC inquires into matters relatable to State List and Concurrent List → section 29 adapts functions and omits treaty study. → NHRC may transfer a complaint to a competent SHRC under statutory conditions.

CONSTITUTIONAL BASIS / ARTICLE

- NHRC national statutory mandate subject to PHRA exclusions and transfer rules.
- SHRC inquires into matters relatable to State List and Concurrent List
- section 29 adapts functions and omits treaty study.

POWER / PROCEDURE

- NHRC may transfer a complaint to a competent SHRC under statutory conditions.
- NCSC, NCST and NCBC have constitutional safeguard mandates.
- Women, child, minority and disability bodies have specialised statutory fields.

CHECK / LIMIT

- COORDINATION common intake metadata → reasoned referral → no duplicate inquiry
- joint thematic work → preserve specialist voice.
- LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

FEDERAL / RIGHTS IMPACT

- NHRC may transfer a complaint to a competent SHRC under statutory conditions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

10 PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS

STAGE 10

PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS · PARIS PRINCIPLES, 1993 BROAD MANDATE · OPEN APPOINTMENT · ADEQUATE RESOURCES STABLE TENURE · INDEPENDENT METHODS · DOMESTIC TEST · PHRA MANDATE AND INQUIRY POWERS VERSUS POLICE/DEPUTATION DEPENDENCE, SHORT · GANHRI CONTROL

PARIS PRINCIPLES, 1993 broad mandate

open appointment → adequate resources stable tenure → independent methods

CONSTITUTIONAL BASIS / ARTICLE

- PARIS PRINCIPLES, 1993 broad mandate
- open appointment
- adequate resources stable tenure
- independent methods
- DOMESTIC TEST

POWER / PROCEDURE

- PHRA mandate and inquiry powers versus police/deputation dependence, short terms, selection opacity and weak follow-up.
- GANHRI CONTROL
- March 2025 SCA recommended B downgrade; India challenged.
- Alteration of India's accreditation is listed for a November 2026 session.
- SAFE LANGUAGE: unresolved official scrutiny, not a completed downgrade.

CHECK / LIMIT

- CASE CONTROLS
- Paramjit Kaur v. State of Punjab (1999): Court-assigned Article 32 expert role does not erase ordinary PHRA limits.
- N.C. Dhoundial v. Union of India (2003): section 36(2) is jurisdictional
- non-reparation does not make a completed act a daily continuing wrong.
- EEVFAM (2016): unlawful-force allegations require lawful inquiry

FEDERAL / RIGHTS IMPACT

- NHRC is valuable but neither exclusive nor generally binding.
- Court-assigned expertise may exceed the ordinary route, but autonomous statutory action remains bounded by the PHRA.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Court-assigned expertise may exceed the ordinary route, but autonomous statutory action remains bounded by the PHRA.

11 LIMITS, REFORMS, PYQS AND QUALIFIED VERDICT

STAGE 11

LIMITS, REFORMS, PYQS AND QUALIFIED VERDICT · STRUCTURAL LIMITS RECOMMENDATORY OUTPUTS · ONE-YEAR BAR · ARMED-FORCES REPORT ROUTE GOVERNMENT-LINKED INVESTIGATION SUPPORT · FEDERAL AND OVERLAP BOUNDARIES. · PRACTICAL LIMITS VACANCIES · DELAYED REPORTS · UNEVEN SHRC CAPACITY WEAK HUMAN RIGHTS COURT ROUTING

STRUCTURAL LIMITS recommendatory outputs → one-year bar → armed-forces report route government-linked investigation support → federal and overlap boundaries. → PRACTICAL LIMITS vacancies

CONSTITUTIONAL BASIS / ARTICLE

- STRUCTURAL LIMITS recommendatory outputs
- one-year bar
- armed-forces report route government-linked investigation support
- federal and overlap boundaries.
- PRACTICAL LIMITS vacancies

POWER / PROCEDURE

- delayed reports
- uneven SHRC capacity weak Human Rights Court routing
- limited civil-society trust.
- REFORM independent multidisciplinary investigation cadre
- open plural appointments → time-bound reasoned response

CHECK / LIMIT

- grave/concealed-violation limitation reform
- safeguarded armed-forces fact-finding → interoperable referrals.
- PYQ ROUTES
- 2018 umbrella-commission debate
- 2021 limitations and remedies

FEDERAL / RIGHTS IMPACT

- 2023 body-classification support.
- MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.
- LEGAL/SOURCE LIMIT: The official roster identifies Justice V.
- Ramasubramanian and three full-time members
- GANHRI alteration proceedings remain unresolved.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.

E SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

EXTRA

OPTIONAL ADVANCED ENRICHMENT · COMPARATIVE INSTITUTIONAL DESIGN REFINEMENTS · [ANALYSIS] A STRONGER COMMISSION NEED NOT BECOME A COURT. · A CALIBRATED MODEL CAN PRESERVE RECOMMENDATORY INQUIRY WHILE IMPOSING · [ANALYSIS] INDEPENDENCE HAS SEPARATE DIMENSIONS · APPOINTMENT PLURALISM, INVESTIGATIVE AUTONOMY, BUDGET ADEQUACY, SECURITY OF TENURE · A REFORM ANSWER SHOULD DIAGNOSE EACH RATHER THAN USE · [LIMIT] PARIS PRINCIPLES AND GANHRI ACCREDITATION ASSESS INSTITUTIONAL COMPATIBILITY

OPTIONAL DOCTRINE / CASE

- Comparative institutional design refinements
- [ANALYSIS] A stronger commission need not become a court.
- A calibrated model can preserve recommendatory inquiry while imposing a statutory comply-or-give-reasons duty and enabling court escalation on
- [ANALYSIS] Independence has separate dimensions: appointment pluralism, investigative autonomy, budget adequacy, security of tenure and publication/follow-up.

ADVANCED LIMIT

- A reform answer should diagnose each rather than use "toothless" as a substitute for analysis.
- [LIMIT] Paris Principles and GANHRI accreditation assess institutional compatibility
- they do not themselves alter the PHRA, invalidate appointments or convert recommendations into decrees.
- [ANALYSIS] Shared intake standards and reasoned referral can reduce NHRC-SHRC-specialist overlap without erasing constitutional or group-specific mandates.

COMPARATIVE NUANCE

- Comparative institutional design refinements - [ANALYSIS] A stronger commission need not become a court.
- A calibrated model can preserve recommendatory inquiry while imposing a
- statutory comply-or-give-reasons duty and enabling court escalation on default.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels